

Vijay Kumar Gupta v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 14 February 2023 · Writ - C No. 5092 of 2023 · **Restore connection on Rs.5 lakh deposit; balance in clause 6.14 instalments**

HEADNOTE

On consent the writ was disposed of with a direction that, if the petitioner deposits Rs.5 lakhs within one month, the respondents shall restore his electricity connection and thereafter fix easy instalments of the balance under clause 6.14 of the U.P. Electricity Supply Code, 2005. He must pay those instalments and the regular bills on time, failing which the recovery revives.

FACTUAL SUMMARY

Vijay Kumar Gupta sought quashing of an order dated 6 January 2023 and a recovery citation dated 1 October 2022 demanding Rs.18,03,382, together with restoration of his electricity connection. The Electricity Department said dues were outstanding and that supply could not be restored until they were cleared. Gupta offered to pay the arrears in easy instalments under clause 6.14 of the U.P. Electricity Supply Code, 2005. The Department did not object; it wanted the whole sum realised and said a bona fide part deposit would allow restoration.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Restoration on part deposit and easy instalments of accepted arrears

HOLDING

On consent the writ was disposed of with a direction that if the petitioner deposits Rs.5 lakhs within one month, the respondents shall restore the electricity connection and thereafter fix easy instalments under clause 6.14 of the U.P. Electricity Supply Code, 2005. The petitioner must pay the instalments and the regular bills on time; if he does not, the recovery revives of itself. ¶ 1

PRINCIPLE TAGS

clause-6.14-instalments-on-accepted-dues Both sides treated the electricity arrears as payable. On consent the Court directed restoration once Rs.5 lakhs was deposited within one month, and directed the licensee thereafter to fix easy instalments of the balance under clause 6.14, with revival of recovery if instalments or current bills were not paid on time. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE ORDER DATED 6 JANUARY 2023 AND THE RECOVERY CITATION DATED 1 OCTOBER 2022, AND THE CORRECTNESS OF THE DEMAND OF RS.18,03,382

The writ was disposed on consent without a merits finding on the citation or the quantum; recovery revives only if instalments or current bills are not paid in time. ¶ 1